

Equivalent Citations

citation codes .

Sri Subir Sutradhar v. The State of Tripura and 2 ors

Tripura High Court (Feb 27, 2023)

CASE NO.

WP(C) No. 116 of 2023

DISPOSITION

ALLOWED

JUDGES

- Hon'ble Mr. Justice A. Lodh

JUDGMENT

Arindam Lodh, J.:— Heard Mr. A. Bhaumik, learned counsel appearing for the petitioner. Also heard Mr. D. Bhattacharya, learned GA appearing for the respondent-State and Mr. Raju Datta, learned counsel appearing for the respondents-TPSC.

2. Short fact of the case is that the petitioner is a graduate in engineering having degree in Bachelor of Engineering in Construction *Technology* and Management.

3. The TPSC had issued an advertisement inviting applications from the graduate engineers to fill up the various posts under the State of Tripura.

4. The grievance of the petitioner is that in response to the advertisement the petitioner had sought for submitting application, but, found that the web-portal of TPSC does not contain any *space* /column on the subject of Construction *Technology* and Management. So, he could not submit the application till today. The last date of submitting application is on 28.02.2023.

5. Mr. Bhaumik, learned counsel has submitted that the degree of Construction *Technology* and Management is equivalent and allied subject to Civil Engineering. To support his submission, Mr. Bhaumik, learned counsel has pressed into service the notification dated 28 April, 2017 under reference no. F. No. 27/RIFD/Pay/01/2017-2018 (Annexure 8 to the writ petition).

6. As it appears, this notification has been issued in exercise of the powers conferred under Sub-section (i) of Section 23 read with Section 10(i) and (v) of the All India Council for Technical Education Act, 1987 (52 of 1987). Under this notification, various regulations have been framed and those regulations are called All India Council for Technical Education(Major/Core Branch of Engineering/*Technology* and their relevant/appropriate

courses leading to degree in Engineering/*Technology*), 2017 for recruitment to teaching positions. These apply to technical institutions conducting technical education and such other courses/programs and areas notified by the Council from time to time.

7. A bare perusal of the said notification, makes it clear that Construction *Technology* and Management is equivalent to Civil Engineering. Relevant chart is given below:

All India Council for Technical Education

Nelson Mandela Marg, New Delhi

Major Branches of Engineering/*Technology* and their relevant/appropriate branch of UG/PG degree in Engineering/*Technology*

Major Disciplines of Engineering/*Technology* Corresponding Course(s) of Engineering/*Technology* Relevant/Appropriate nomenclature of UG degree in Engineering/*Technology* Relevant/Appropriate nomenclature of PG degree in Engineering/*Technology* **** ****

**** **** Civil Engineering Civil Engineering BUILDING AND CONSTRUCTION TECHNOLOGY BUILDING AND CONSTRUCTION TECHNOLOGY CIVIL & RURAL ENGINEERING CIVIL & RURAL ENGINEERING CIVIL ENGINEERING CIVIL (PUBLIC HEALTH & ENVIRONMENT) ENGINEERING CIVIL ENGINEERING & PLANNING CIVIL ENGINEERING CIVIL ENGINEERING (CONSTRUCTION TECHNOLOGY) CIVIL ENGINEERING (CONSTRUCTION TECHNOLOGY) CIVIL & INFRASTRUCTURE ENGINEERING CIVIL ENGINEERING (ENVIRONMENTAL & POLLUTION CONTROL) CIVIL TECHNOLOGY CIVIL ENGINEERING (ENVIRONMENTAL ENGINEERING) CONSTRUCTION ENGINEERING CIVIL ENGINEERING (TRANSPORTATION ENGINEERING) CONSTRUCTION ENGINEERING AND MANAGEMENT CIVIL ENGINEERING (WATER MANAGEMENT) CONSTRUCTION TECHNOLOGY CIVIL ENVIRONMENTAL ENGINEERING CONSTRUCTION TECHNOLOGY AND MANAGEMENT COMPUTER AIDED DESIGN OF STRUCTURES

8. By the passage of time many complications were cropped up in various institutions and in the process of employment of the engineers in various departments. It necessitated the authorities concerned to issue notification by way of an addendum for clarifications of the regulations contained in the notification dated 28 April, 2017. This addendum is reproduced here-in-below, for convenience, in extenso:

“ALL INDIA COUNCIL FOR TECHNICAL EDUCATION

ADDENDUM NOTIFICATION

New Delhi, the 06 October, 2021

F. No. AICTE/P&AP/Engg. Discipline/2021. -In exercise of the powers conferred under

Sub-Section (i) of Section 23 read with Section 10 (i) and (v) of the All India Council for Technical Education Act, 1987 (52 of 1987), the All India Council for Technical Education issued Gazette Notification on 28 April, 2017 viz. “All India Council for Technical Education Regulations (Major/Core Branch of Engineering/*Technology* and their relevant/appropriate courses leading to degree in Engineering/*Technology*), 2017” for recruitment to teaching positions.

Keeping in view the contents of the aforesaid Gazette Notification, the difficulty is being faced by various job seekers and Government organizations in taking decision for recruitment of candidates for various posts having qualifications in Engineering and *Technology* at Degree and PG Level and also the provisions made in the new National Education Policy (NEP)-2020 about multidisciplinary and flexibility, it is hereby clarified that the aforesaid organizations should take into consideration the list of major disciplines of Engineering and *Technology* and their relevant/appropriate branches with nomenclature of UG and PG degree as notified while deciding the Core branch and Allied branches. The Cases of candidates pertaining to the branches other than those pointed out in the above referred Gazette Notification, may be dealt with by recruiting organizations by convening a meeting of the Committee of Experts to decide the suitability based on the merit of each case(s) and the job requirements of the concerned organization.

Prof. RAJIVE KUMAR, Member Secy.

[ADVT.-III/4/Exty./326/2021-22]”

9. By the said addendum notification dated 6 October, 2021 it is clarified that all the organizations should take into consideration the list of major disciplines of engineering and *technology* and their relevant/appropriate branches with nomenclatures of UG and PG degree as notified while deciding the core branch and allied branches.

10. Mr. Datta, learned counsel appearing for the TPSC being noticed has appeared before this Court and participated in course of hearing of the present writ petition. Mr. Datta, learned counsel has submitted that to include this subject, it is necessary to constitute an Expert Committee and the Expert Committee shall decide about the controversy arising out of the degree of the petitioner.

11. Mr. Bhattacharya, learned GA also has echoed the submissions of Mr. Datta, learned counsel for the TPSC.

12. I have given my thoughtful considerations to the submissions of the learned counsel appearing for the parties. On careful reading of the addendum notification dated 6 October, 2021, it comes to fore that the inclusion of this subject “Construction *Technology* and Management” has already been included in the notification dated 28 April, 2017. As it appears from the addendum notification dated 6 October, 2021, it is clear that question of constitution of Expert Committee relates only in respect of the cases of candidates pertaining to the branches other than those pointed out in the above Gazette Notification, which may be dealt with by recruiting organizations.

13. Thus, it is quite indicative that the subject which has already been included in the notification would not be the subject matter of further scrutiny by any Expert Committee.

14. In the light of the above discussions, I do not find any merit in the submissions advanced by learned counsel appearing for the State of Tripura and TPSC as well. Accordingly, this submission is repelled.

15. Having considered the submissions of learned counsel appearing for the parties and on perusal of the notification dated 28 April, 2017 along with addendum notification dated 6 October, 2021, I direct the respondents to accept the application of the petitioner within the specified period i.e. the last date of submission of application. If subject in issue is not found in the web-portal of the TPSC, then, TPSC is directed to accept the application physically and allow the petitioner to participate in the selection process.

16. With the aforesaid order, the instant writ petition stands allowed and thus disposed of.